

Court No. - 2

Case :- WRIT - C No. - 649 of 2023

Petitioner :- Imteyaz Hasan Beg

Respondent :- State Of U.P. Thru. Collector Unnao And Others

Counsel for Petitioner :- Anand Kumar Singh, Divaker Man Singh Sengar

Counsel for Respondent :- C.S.C.

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Manish Kumar, J.

Heard learned counsel for the petitioner and learned Standing Counsel, who appears on behalf of the State-respondents.

Learned counsel has pointed out that the description of opposite party no. 3 has been wrongly given in the array of the respondents, it should be Executive Engineer of the Electricity Distributing Division of Madhyanchal Vidyut Vitran Nigam Ltd. However, the petitioner has not given correct description of the opposite party no. 3.

From the perusal of the pleadings on record, it appears that the Executive Engineer has issued a notice to the petitioner on 10.10.2022 with regard to certain arrears of his electricity dues which have not yet been paid by him.

It is the case of the petitioner that his connection was permanently dis-connected in the year 1998 and only arm-twisting tactics are being applied by opposite party no. 3, for extraneous considerations.

This Court is of the opinion that if the petitioner disputes the electricity bill/notice issued by the opposite party no. 3, the only remedy available to him is to approach the opposite parties under Chapter 6 of the Electricity Supply Code, 2005.

In view of above, the present writ petition is dismissed on the ground of availability of statutory remedy to the petitioner.

Order Date :- 27.1.2023

Nitesh